
[The Act is printed, as amended, pursuant to sections 5 and 10 of the Act. The amendments are those in force on the 6th April 1975.]



CHAPTER 20

An Act to make provision for disqualifying the holders of specified offices for membership of the House of Commons, and to repeal the enactments providing for the disqualification of the holders of offices or places of profit under the Crown and other offices, of persons having pensions from the Crown and of persons contracting with the Crown for or on account of the public service, and certain enactments disqualifying members of that House for holding other offices; to make corresponding provision in respect of the Senate and House of Commons of Northern Ireland; and for purposes connected with the matters aforesaid.

[17th April 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, a person is disqualified for membership of the House of Commons who for the time being—

- (a) holds any of the judicial offices specified in Part I of Schedule 1 to this Act;
- (b) is employed in the civil service of the Crown, whether in an established capacity or not, and whether for the whole or part of his time;
- (c) is a member of any of the regular armed forces of the Crown;

Disqualifica-
tion of holders
of certain
offices and
places.

- (d) is a member of any police force maintained by a police authority ;
- (e) is a member of the legislature of any country or territory outside the Commonwealth ; or
- (f) holds any office described in Part II or Part III of the said Schedule 1.

(2) A person who for the time being holds any office described in Part IV of the said Schedule 1 is disqualified for membership of the House of Commons for any constituency specified in relation to that office in the second column of the said Part IV.

(3) In this section the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“civil service of the Crown” includes the civil service of Northern Ireland, Her Majesty’s Diplomatic Service and Her Majesty’s Overseas Civil Service ;

1948 c. 24.

“police authority” means a police authority as defined for the purposes of the Police Pensions Act 1948, or the Ministry of Home Affairs for Northern Ireland ; and “member” in relation to a police force means a person employed as a full-time constable ;

1955 c. 18.

1955 c. 19.

“regular armed forces of the Crown” means the Royal Navy, the regular forces as defined by section 225 of the Army Act 1955, the regular air force as defined by section 223 of the Air Force Act 1955, the Women’s Royal Naval Service, Queen Alexandra’s Royal Naval Nursing Service and Voluntary Aid Detachments serving with the Royal Navy.

(4) Except as provided by this Act, a person shall not be disqualified for membership of the House of Commons by reason of his holding an office or place of profit under the Crown or any other office or place ; and a person shall not be disqualified for appointment to or for holding any office or place by reason of his being a member of that House.

Ministerial
offices.

2.—(1) Not more than ninety-five persons being the holders of offices specified in Schedule 2 to this Act (in this section referred to as Ministerial offices) shall be entitled to sit and vote in the House of Commons at any one time.

(2) If at any time the number of members of the House of Commons who are holders of Ministerial offices exceeds the number entitled to sit and vote in that House under the foregoing provisions of this section, none except any who were both members of that House and holders of Ministerial offices

before the excess occurred shall sit or vote therein until the number has been reduced, by death, resignation or otherwise, to the number entitled to sit and vote as aforesaid.

(3) In paragraph (d) of subsection (3) of section 1 of the Ministers of the Crown (Transfer of Functions) Act 1946 (which 1946 c. 31. enables an Order in Council under that section to make consequential modifications of enactments described in that paragraph) the reference to enactments regulating the number of office holders who may be elected, and sit and vote, as members of the House of Commons shall be construed as a reference to this section and Schedule 2 to this Act; and the reference in section 2 of that Act to such enactments as are mentioned in the said paragraph (d) shall be construed accordingly.

(4) A person holding a Ministerial office is not disqualified by this Act by reason of any office held by him *ex officio* as the holder of that Ministerial office.

3.—(1) Notwithstanding paragraph (c) of subsection (1) of section 1 of this Act, a person being an officer on the retired or emergency list of any of the regular armed forces of the Crown, or holding an emergency commission in any of those forces, or belonging to any reserve of officers of any of those forces, is not disqualified as a member of those forces. Reserve and auxiliary forces, etc.

(2) Notwithstanding the said paragraph (c), a naval, army, marine or air force pensioner who is recalled for service for which he is liable as such is not disqualified as a member of the regular armed forces of the Crown.

(3) A person is not disqualified under the said paragraph (c) by reason of his being an Admiral of the Fleet, a Field Marshal or a Marshal of the Royal Air Force, if he does not for the time being hold an appointment in the naval, military or air force service of the Crown.

(4) A person is not disqualified under paragraph (b) of subsection (1) of section 1 of this Act by reason of his being a member of the Royal Observer Corps unless he is employed as such for the whole of his time.

4. For the purposes of the provisions of this Act relating to the vacation of the seat of a member of the House of Commons who becomes disqualified by this Act for membership of that House, the office of steward or bailiff of Her Majesty's three Chiltern Hundreds of Stoke, Desborough and Burnham, or of the Manor of Northstead, shall be treated as included among the offices described in Part III of Schedule 1 to this Act. Stewardship of Chiltern Hundreds, etc.

Provision for
amendment of
Schedule 1.

5.—(1) If at any time it is resolved by the House of Commons that Schedule 1 to this Act be amended, whether by the addition or omission of any office or the removal of any office from one Part of the Schedule to another, or by altering the description of any office specified therein, Her Majesty may by Order in Council amend that Schedule accordingly.

(2) A copy of this Act as from time to time amended by Order in Council under this section or by or under any other enactment shall be prepared and certified by the Clerk of the Parliaments and deposited with the rolls of Parliament; and all copies of this Act thereafter to be printed by Her Majesty's printer shall be printed in accordance with the copy so certified.

Effects of
disqualification
and provision
for relief.

6.—(1) Subject to any order made by the House of Commons under the following provisions of this section,—

(a) if any person disqualified by this Act for membership of the House of Commons, or for membership of that House for a particular constituency, is elected as a member of that House, or as a member for that constituency, as the case may be, his election shall be void; and

(b) if any person being a member of that House becomes disqualified by this Act for membership of that House, or for membership for the constituency for which he is sitting, his seat shall be vacated.

(2) If in a case falling or alleged to fall within the foregoing subsection it appears to the House of Commons that the grounds of disqualification or alleged disqualification under this Act which subsisted or arose at the material time have been removed, and that it is otherwise proper so to do, the House may by order direct that any such disqualification incurred on those grounds at that time shall be disregarded for the purposes of this section:

Provided that no such order shall affect the proceedings on any election petition or any determination of an election court, and this subsection shall have effect subject to the provisions of subsection (5) of section 124 of the Representation of the People Act 1949 (which relates to the making of an order by the House of Commons when informed of a certificate and any report of an election court).

1949 c. 68.

(3) In any case where, apart from this provision, the Speaker of the House of Commons would be required to issue during a recess of that House a warrant for a new writ for election of a member of that House in the room of a member becoming disqualified by this Act, he may, if it appears to him that an opportunity should be given to the House to consider the making of an order under subsection (2) of this section, defer the issue of his warrant pending the determination of the House.

7.—(1) Any person who claims that a person purporting to be a member of the House of Commons is disqualified by this Act, or has been so disqualified at any time since his election, may apply to Her Majesty in Council, in accordance with such rules as Her Majesty in Council may prescribe, for a declaration to that effect.

Jurisdiction of
Privy Council
as to disquali-
fication.

(2) Section 3 of the Judicial Committee Act 1833 (which provides for the reference to the Judicial Committee of the Privy Council of appeals to Her Majesty in Council) shall apply to any application under this section as it applies to an appeal to Her Majesty in Council from a court.

(3) Upon any such application the person in respect of whom the application is made shall be the respondent; and the applicant shall give such security for the costs of the proceedings, not exceeding two hundred pounds, as the Judicial Committee may direct.

(4) For the purpose of determining any issue of fact arising on an application under this section the Judicial Committee may direct the issue to be tried—

- (a) if the constituency for which the respondent purports to be a member is in England or Wales, in the High Court;
- (b) if that constituency is in Scotland, in the Court of Session;
- (c) if that constituency is in Northern Ireland, in the High Court in Northern Ireland;

and the decision of that Court shall be final.

(5) Subject as hereinafter provided, a declaration may be made in respect of any person under this section whether the grounds of the alleged disqualification subsisted at the time of his election or arose subsequently:

Provided that no such declaration shall be made—

- (a) in the case of disqualification incurred by any person on grounds which subsisted at the time of his election, if an election petition is pending or has been tried in which his disqualification on those grounds is or was in issue;
- (b) in the case of disqualification incurred by any person on any grounds, if an order has been made by the House of Commons under subsection (2) of section 6 of this Act directing that any disqualification incurred by him on those grounds shall be disregarded for the purposes of that section.

8.—(1) No person being a member of the House of Commons, or for the time being nominated as a candidate for election to that House, shall be required to accept any office

Relaxation of
obligation to
accept office.

or place by virtue of which he would be disqualified by this Act for membership of that House, or for membership of that House for the constituency for which he is sitting or is a candidate.

(2) This section does not affect any obligation to serve in the armed forces of the Crown, whether imposed by an enactment or otherwise.

Repeal of
disqualification
of Crown
pensioners
and Crown
contractors.
1931 c. 13.

9. A person shall not be disqualified for membership of the House of Commons by reason of his having any pension from the Crown or by reason of any such contract, agreement or commission for or on account of the public service as is described in the House of Commons Disqualification (Declaration of Law) Act 1931.

Provisions
relating to
Northern
Ireland
Assembly.

10.—(1) Subject to subsection (2) of this section, the following provisions of this Act, that is to say—

(a) section 1(1), (3) and (4) and sections 3, 5, 8 and 9; and

(b) Parts I, II and III of Schedule 1,

shall apply in relation to the Northern Ireland Assembly as they apply in relation to the House of Commons of the Parliament of the United Kingdom, and references in those provisions to the House of Commons shall be construed accordingly.

(2) In relation to the Northern Ireland Assembly for Parts II and III of Schedule 1 to this Act there shall be substituted the Parts set out in Schedule 3 to this Act.

Amendment
of Parlia-
mentary
Elections
Rules.
1949 c. 68.

11. Schedule 2 to the Representation of the People Act 1949 (which contains Parliamentary Elections Rules and Local Elections Rules) shall be amended by the addition at the end of Rule 9 of the Parliamentary Elections Rules of the following paragraph, that is to say—

“(2) A candidate’s consent given under this rule shall contain a statement that he is aware of the provisions of the House of Commons Disqualification Act 1957, and that, to the best of his knowledge and belief, he is not disqualified for membership of the House of Commons.”

12.

13.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpretation.

“enactment” includes an enactment of the Parliament of Northern Ireland;

“Minister of State” means a member of Her Majesty’s Government in the United Kingdom who neither has charge of any public department nor holds any other of the offices specified in Schedule 2 to this Act or any office in respect of which a salary is payable out of moneys provided by Parliament under paragraph 3(1)(b) of Schedule 3 to the Ministerial and other Salaries Act 1972;

“Parliamentary Secretary” includes a person holding Ministerial office (however called) as assistant to a Member of Her Majesty’s Government in the United Kingdom, but not having departmental responsibilities.

(2) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as extended or applied, by or under any subsequent enactment.

14. Nothing in this Act shall be construed as affecting the enactments relating to the disqualification for membership of the House of Commons of priests in holy orders or ministers of any religious denomination. Repeals.

15. This Act may be cited as the House of Commons Disqualification Act 1957. Short title.

SCHEDULES**SCHEDULE 1****OFFICES DISQUALIFYING FOR MEMBERSHIP****PART I****JUDICIAL OFFICES**

Judge of the High Court of Justice or Court of Appeal.

Judge of the Court of Session.

Judge of the High Court of Justice or Court of Appeal in Northern Ireland.

Judge of the Courts-Martial Appeal Court.

Chairman of the Scottish Land Court.

Circuit Judge.

1907 c. 51. Sheriff Principal or Sheriff (other than Honorary Sheriff) appointed
1971 c. 58. under the Sheriff Courts (Scotland) Act 1907, or Temporary Sheriff
Principal or Temporary Sheriff appointed under the Sheriff Courts
(Scotland) Act 1971.

1920 c. 67. County Court Judge or Temporary County Court Judge in Northern
Ireland within the meaning of the Government of Ireland Act
1920, or the deputy of such a Judge.

1949 c. 101. Stipendiary Magistrate within the meaning of the Justices of the
Peace Act 1949.

Stipendiary Magistrate in Scotland.

1935 c. 13 (N.I.). Resident Magistrate appointed under the Summary Jurisdiction and
1964 c. 21 (N.I.). Criminal Justice Act (Northern Ireland) 1935 or the Magistrates'
Courts Act (Northern Ireland) 1964.

Chief or other National Insurance Commissioner.

Chief or other National Insurance Commissioner for Northern
Ireland.

1948 c. 64. Umpire or Deputy Umpire appointed for the purposes of section
43 of the National Service Act 1948.

PART II**COMMISSIONS, TRIBUNALS AND OTHER BODIES OF WHICH
ALL MEMBERS ARE DISQUALIFIED**

The Advisory Board for the Research Councils.

The Agrément Board ;

The Appellate Tribunal constituted under the provisions of the
National Service Act 1948, relating to conscientious objectors.

An Area Electricity Board in England and Wales.

The Attendance Allowance Board.

The British Airports Authority.

The British Airways Board.

- The British Film Fund Agency.
- The British Gas Corporation.
- The British Railways Board.
- The British Steel Corporation.
- The British Transport Docks Board.
- The British Waterways Board.
- The Central Council for Agricultural and Horticultural Co-operation.
- The Central Electricity Generating Board.
- The Channel Tunnel Planning Council.
- The Civil Aviation Authority.
- The Civil Service Arbitration Tribunal.
- A Colonial Currency Board.
- The Commission for Local Administration in England.
- The Commission for Local Administration in Wales.
- The Commission for the New Towns.
- The Commonwealth Development Corporation.
- The Community Relations Commission.
- The Council on Tribunals.
- The Covent Garden Market Authority.
- The Crofters Commission.
- The Crown Agents for Oversea Governments and Administrations.
- The Crown Estate Commissioners.
- The Development Commission established under the Development and Road Improvement Funds Act 1909 c. 47.
- A Development Corporation within the meaning of the New Towns Act 1965 or the New Towns (Scotland) Act 1968. 1965 c. 59 1968 c. 16.
- A Development Council established under the Industrial Organisation and Development Act 1947. 1947 c. 40.
- The Eggs Authority.
- The Electricity Council.
- The Foreign Compensation Commission.
- The Forestry Commission.
- The Freight Integration Council.
- The Gaming Board for Great Britain.
- The General Practice Finance Corporation.
- The Health and Safety Commission.
- The Health and Safety Executive.
- The Herring Industry Board.
- The Highlands and Islands Development Board.
- The Home-Grown Cereals Authority.

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The Housing Corporation.

The Immigration Appeal Tribunal.

1944 c. 31.
1962 c. 47. An Independent Schools Tribunal constituted under Schedule 6 to the Education Act 1944, or under Schedule 7 to the Education (Scotland) Act 1962.

The Independent Broadcasting Authority.

The Industrial Arbitration Board.

An Industrial Court established in Northern Ireland.

1972 c. 5. The Industrial Estates Corporations constituted in accordance with the Local Employment Act 1972.

The Industrial Injuries Advisory Council.

The Intervention Board for Agricultural Produce and every committee of the Board performing functions of the Board.

1972 c. 52. A Joint Planning Inquiry Commission constituted under Part III of the Town and Country Planning (Scotland) Act 1972.

The Lands Tribunal.

The Lands Tribunal for Northern Ireland.

The Lands Tribunal for Scotland.

The Law Commission.

The Local Government Boundary Commission for England.

The Local Government Boundary Commission for Scotland.

The Local Government Boundary Commission for Wales.

The Location of Offices Bureau.

The Manpower Services Commission.

The Maplin Development Authority.

The Meat and Livestock Commission.

1975 c. 14.
1975 c. 15. A Medical Appeal Tribunal constituted for the purposes of Part III of the Social Security Act 1975 or Part III of the Social Security (Northern Ireland) Act 1975, including any panel constituted for the purposes of any such Tribunal.

A Medical Board or Pneumoconiosis Medical Board constituted for the purposes of Part III of the Social Security Act 1975 or Part III of the Social Security (Northern Ireland) Act 1975, including any panel constituted for the purposes of any such Board.

1946 c. 81.
1947 c. 27. A Medical Practices Committee constituted under section 34 of the National Health Service Act 1946, or section 35 of the National Health Service (Scotland) Act 1947.

1968 c. 67. The Medicines Commission and any committee established under section 4 of the Medicines Act 1968.

1959 c. 72. A Mental Health Review Tribunal constituted under the Mental Health Act 1959.

The Mental Welfare Commission for Scotland.

The Metrication Board.

The Ministry of Defence (Army Department) Teachers Selection Board.

The Monopolies and Mergers Commission.

A National Broadcasting Council.

The National Bus Company.

The National Coal Board.

The National Dock Labour Board.

The National Film Finance Corporation.

The National Freight Corporation.

The National Health Service Staff Commission.

The National Insurance Advisory Committee.

The National Ports Council.

The National Radiological Protection Board.

The National Research Development Corporation.

The North of Scotland Hydro-Electric Board.

The Northern Ireland Electricity Service.

The Occupational Pensions Board.

A Panel of Chairmen of Re-instatement Committees constituted under section 41 of the National Service Act 1948. 1948 c. 64.

The Panel of Official Arbitrators constituted for the purposes of the Acquisition of Land (Assessment of Compensation) Act 1919. 1919 c. 57.

The Parole Board constituted under section 59 of the Criminal Justice Act 1967. 1967 c. 80.

A Pensions Appeal Tribunal.

The Performing Right Tribunal.

A Planning Inquiry Commission constituted under Part III of the Town and Country Planning Act 1971. 1971 c. 78.

A Planning Inquiry Commission constituted under Part III of the Town and Country Planning (Scotland) Act 1972. 1972 c. 52.

The Post Office.

The Price Commission.

The Property Commission for Scotland established under section 224 of the Local Government (Scotland) Act 1973. 1973 c. 65.

The Race Relations Board and any conciliation committee constituted by the Board under section 14 of the Race Relations Act 1968. 1968 c. 71.

The Red Deer Commission.

The Reserve Pension Board.

The Restrictive Practices Court.

The Review Board for Government Contracts.

A Rural Development Board.

The Scottish Committee of the Council on Tribunals.

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The Scottish Land Court.

The Scottish Law Commission.

The Scottish Transport Group.

The South of Scotland Electricity Board.

1963 c. 33. The Staff Commission established under section 85(5) of the London Government Act 1963.

1972 c. 70. The Staff Commission for England established under section 257 of the Local Government Act 1972.

1973 c. 65. The Staff Commission for Scotland established under section 218 of the Local Government (Scotland) Act 1973.

The Staff Commission for Wales established under section 258 of the Local Government Act 1972.

The Sugar Board.

The Supplementary Benefits Commission.

The Traffic Commissioners for any area (including the commissioner for the Metropolitan Traffic Area).

The Transport Tribunal.

1949 c. 54. The Tribunal established under Part II of the Wireless Telegraphy Act 1949.

The United Kingdom Atomic Energy Authority.

The University Grants Committee.

A Value Added Tax Tribunal.

The War Works Commission.

The Water Resources Board.

The Welsh National Health Service Staff Commission.

1970 c. 11. The White Fish Authority constituted in accordance with section 1 of the Sea Fish Industry Act 1970, and the committee constituted in accordance with section 2 of that Act.

PART III

OTHER DISQUALIFYING OFFICES

1933 c. 41. Accountant of Court appointed under section 25 of the Administration of Justice (Scotland) Act 1933.

1971 c. 77. Adjudicator appointed for the purposes of the Immigration Act 1971.

Agent for Northern Ireland in Great Britain.

Ambassador representing Her Majesty's Government in the United Kingdom.

Assessor of Public Undertakings (Scotland).

1972 c. 70. Assistant Commissioner appointed under Part IV of the Local Government Act 1972.

Assistant Commissioner appointed under Part II of the Local Government (Scotland) Act 1973. SCH. 1
1973 c. 65.

Attorney General of the Duchy of Lancaster.

Auditor of the Civil List.

Auditor of the Court of Session.

Boundary Commissioner or Assistant Boundary Commissioner appointed under Part I or Part II of Schedule 1 to the House of Commons (Redistribution of Seats) Act 1949. 1949 c. 66.

Chairman or Deputy Chairman of an Administrative Board constituted for the purposes of any scheme made, or having effect as if made, under section 2 or 5 of the Industrial Injuries and Diseases (Old Cases) Act 1975. 1975 c. 16.

Chairman or Vice-Chairman of the Advisory Committee on Distinction Awards.

Chairman of the Advisory Committee on Distinction Awards in Northern Ireland.

Chairman or member of a panel of deputy-chairmen of an Agricultural Land Tribunal.

Chairman of an Appeal Tribunal constituted under Schedule 3 to the Ministry of Social Security Act 1966 or Schedule 3 to the Supplementary Benefits &c. Act (Northern Ireland) 1966. 1966 c. 20.
1966 c. 28
(N.I.).

Chairman or Director-General of the British Council.

Chairman of the Cinematograph Films Council.

Paid Chairman of the Central Transport Consultative Committee for Great Britain or of an Area Transport Users Consultative Committee established under section 56 of the Transport Act 1962. 1962 c. 46.

Chairman of the Countryside Commission for Scotland and any other member of the Commission in receipt of remuneration.

Chairman or Vice-Chairman of the Dental Estimates Board or member of that Board appointed at an annual salary.

Paid Chairman of an Economic Development Committee.

Paid Chairman of a Health Board constituted under the National Health Service (Scotland) Act 1972. 1972 c. 58.

Chairman of a Health and Social Services Board established under article 16 of the Health and Social Services (Northern Ireland) Order 1972. S.I. 1972/1265
(N.I. 14).

Paid Chairman of an Industrial Training Board constituted under the Industrial Training Act 1964 or of a committee appointed under that Act or paid Deputy Chairman of such a board.

Chairman, Vice-Chairman or member of the executive committee of the Land Settlement Association Limited appointed at a salary.

Chairman of the Local Government Staff Commission for Northern Ireland.

Chairman of a Local Tribunal constituted under section 97(2) of, and Schedule 10 to, the Social Security Act 1975 or under section 97(2) of, and Schedule 10 to, the Social Security (Northern Ireland) Act 1975. 1975 c. 14.
1975 c. 15.

Chairman or Deputy Chairman of a Local Tribunal constituted under the provisions of the National Service Act 1948, relating to conscientious objectors. 1948 c. 64.

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Chairman or Reserve Chairman of a Military Service (Hardship) Committee constituted under Schedule 3 to the National Service Act 1948.

Chairman of the Mining Qualifications Board.

Paid Chairman of a National Economic Development Council Working Party.

Chairman in receipt of remuneration of the National Gas Consumers' Council or any Regional Gas Consumers' Council.

Chairman or Vice-Chairman of the National Seed Development Organisation Limited.

Chairman, or other member appointed by a Minister, of the National Water Council.

Chairman of the Northern Ireland Central Services Agency for the Health and Social Services.

Chairman of the Northern Ireland Council for Nurses and Midwives.

Chairman of the Northern Ireland Staffs Council for the Health and Social Services.

Any Chairman of the Plant Varieties and Seeds Tribunal.

Chairman of the Post Office Users' National Council.

Chairman of a Regional Economic Planning Council.

Chairman in receipt of remuneration of any Regional Health Authority, Area Health Authority or Area Health Authority (Teaching) or of any special health authority.

Chairman of a regional water authority.

Chairman of the Scottish Dental Estimates Board or member of that Board appointed at an annual salary.

Chairman, Deputy Chairman or member of the Council of Management of the Scottish Special Housing Association, appointed at a salary.

Chairman of the Staff Commission for Education and Library Boards in Northern Ireland.

1970 c. 10. Chairman of the tribunal constituted under section 463 of the Income and Corporation Taxes Act 1970.

Chairman of the Welsh National Water Development Authority.

Chief Electoral Officer or Deputy Electoral Officer for Northern Ireland.

Clerk of the Crown and Peace in Northern Ireland.

Clerk of the Peace in Scotland.

Clerk or Assistant Clerk of Petty Sessions in Northern Ireland.

1920 c. 27. The Commissioner appointed by Her Majesty's Government in the United Kingdom under Article 3 of the Agreement confirmed by the Nauru Island Agreement Act 1920.

Assistant Commissioner appointed under Part II of the Local Government (Scotland) Act 1973.

Commissioner or Assistant Commissioner appointed under section 50(1) or (2) of, or Schedule 4 to, the Local Government Act (Northern Ireland) 1972.

Commissioner or Assistant Commissioner of Police of the Metropolis.

Commissioner of the City of London Police.

Comptroller and Auditor General.

Comptroller and Auditor-General for Northern Ireland.

Constable, Lieutenant or Major of the Tower of London.

Correspondent appointed by the Commissioners of Customs and Excise.

Counsel to the Secretary of State under the Private Legislation 1936 c. 52. Procedure (Scotland) Act 1936.

Crown Solicitor for Northern Ireland.

Delegate for Her Majesty's Government in the United Kingdom to the Central Rhine Commission.

Director of the Agricultural Mortgage Corporation Limited nominated by a Minister of the Crown or government department.

Director of the British Petroleum Company Limited nominated by a Minister of the Crown or government department.

Director of the British Sugar Corporation Limited appointed by the Ministers as defined by section 17 of the Sugar Act 1956. 1956 c. 48.

Director of Cable and Wireless Limited.

Director of the Cereals Committee Limited appointed by a Minister of the Crown or government department.

Director of the Commonwealth Institute.

Director of the Compagnie Financière de Suez et de L'Union Parisienne appointed by a Minister of the Crown or government department.

Director of any company in receipt of financial assistance under the Distribution of Industry Act 1945, the Distribution of Industry (Industrial Finance) Act 1958, the Shipbuilding Industry Act 1967, the Local Employment Act 1972 or Part II of the Industry Act 1972, being a director nominated by a Minister of the Crown or government department. 1945 c. 36.
1967 c. 40.
1972 c. 5.
1972 c. 63.

Director nominated by the Secretary of State of any company in respect of which an undertaking to make advances has been given by the Secretary of State under section 2 of the Highlands and Islands Shipping Services Act 1960, and is for the time being in force. 1960 c. 31.

Director of the Holding Company referred to in the Transport Act 1962. 1962 c. 46.

Director appointed at a salary of Industrial Advisers to the Blind Limited.

Director of International Computers (Holdings) Limited nominated or appointed by a Minister of the Crown or government department.

Director appointed at a salary of the National Building Agency.

Director appointed at a salary of the National Institute for House-craft (Employment and Training) Limited.

Director of the Peterhead Bay (Management) Company Limited.

Director, or Deputy Director, of Public Prosecutions for Northern Ireland.

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Director appointed at a salary of Remploy Limited.

Director of S.B. (Realisations) Limited nominated or appointed by a Minister of the Crown or government department.

Director of the Scottish Agricultural Securities Corporation Limited nominated by a Minister of the Crown or government department.

Director General of Fair Trading.

Distributor of Stamps appointed by the Commissioners of Inland Revenue for the Stock Exchange at Manchester or Glasgow.

Election Commissioner.

Examiner or member of a board of interviewers appointed by the Civil Service Commissioners.

Examiner for entrance examination to, or member of a board of interviewers for entrance to, the civil service of Northern Ireland.

General Manager or Secretary of the Scottish Special Housing Association.

Governor of the British Broadcasting Corporation.

Governor, Deputy Governor or Director of the Bank of England.

Governor, Lieutenant Governor and Secretary, or Captain of Invalids of Chelsea Hospital.

1953 c. 18 (N.I.). Governor, Medical Officer or other officer or member of the staff of a prison to which the Prison Act (Northern Ireland) 1953, applies.

Health Service Commissioner for England.

Health Service Commissioner for Scotland.

Health Service Commissioner for Wales.

High Commissioner representing Her Majesty's Government in the United Kingdom.

1924 c. 21 (N.I.). Industrial Assurance Commissioner or Deputy Industrial Assurance Commissioner appointed under the Industrial Assurance Act (Northern Ireland) 1924.

Judge Advocate of the Fleet.

Judge Advocate General, Vice Judge Advocate General, Assistant Judge Advocate General or Deputy Judge Advocate.

Lay observer appointed under section 28A of the Solicitors Act 1957.

Local government officers, the following—

Clerk or deputy clerk of a district council in Northern Ireland ;

County clerk or depute county clerk of a county in Scotland ;

Clerk or depute clerk of a district council in Scotland ;

Town clerk or depute town clerk of a burgh in Scotland.

Lyon Clerk.

Lyon King of Arms.

1958 c. 47. Member of an Agricultural Marketing Board appointed by the Minister under Schedule 2 to the Agricultural Marketing Act 1958.

Member of an Agricultural Marketing Board appointed under section 2 of the Agricultural Marketing Act (Northern Ireland) 1933 or section 3 of the Agricultural Marketing Act (Northern Ireland) 1964. SCH. 1
1933 c. 22 (N.I.).
1964 c. 13 (N.I.).

Member appointed by the Minister of Agriculture, Fisheries and Food of the Agricultural Wages Board for England and Wales or of an agricultural wages committee established under the Agricultural Wages Act 1948, or chairman of such a committee. 1948 c. 47.

Member appointed by the Secretary of State of the Scottish Agricultural Wages Board.

Member appointed by the Head of the Department or Minister of Agriculture for Northern Ireland of the Agricultural Wages Board for Northern Ireland.

Any member of the British Library Board in receipt of remuneration.

Any member in receipt of remuneration of the British Tourist Authority, the English Tourist Board, the Scottish Tourist Board or the Wales Tourist Board. 1969 c. 51.

Any member of the Countryside Commission in receipt of remuneration.

Member appointed by the Secretary of State of the Horserace Betting Levy Board.

Member of the Council of the National Computing Centre appointed at a salary by a Minister of the Crown or government department.

Any member of the Nature Conservancy Council in receipt of remuneration. 1945 c. 21 (N.I.).

Member of a panel of valuers appointed at an annual salary under section 4 of the Inland Revenue Regulation Act 1890. 1890 c. 21.

Member of the Permanent Joint Hops Committee appointed by a Minister of the Crown or government department. 1968 c. 3.

Member of a Wages Council or Central Co-ordinating Committee appointed under paragraph 1(a) of Schedule 2 to the Wages Councils Act 1959, Chairman of a Committee appointed under paragraph 1(1)(a) of Schedule 3 to that Act or Member of a Commission of Inquiry appointed under paragraph 1(a) of Schedule 4 to that Act. 1959 c. 69.

Member of a Wages Council or Central Co-ordinating Committee appointed under paragraph 1 (a) of Schedule 1 to the Wages Councils Act (Northern Ireland) 1945, or Member of a Commission of Inquiry appointed under paragraph 1(a) of Schedule 2 to that Act.

Northern Ireland Commissioner for Complaints.

Northern Ireland Parliamentary Commissioner for Administration.

Officer of the Board of Referees appointed for the purposes of section 26 of the Capital Allowances Act 1968. 1968 c. 3.

Officer or servant employed under the Commissioner of Police of the Metropolis or the Receiver for the Metropolitan Police District.

Officer or servant of the Crown Estate Commissioners.

Officer or other member of the County Court Service within the meaning of the County Courts Act (Northern Ireland) 1959. 1959 c. 25 (N.I.).

- SCH. 1
1865 c. 89. Officer, clerk or servant appointed or employed under section 20 of the Greenwich Hospital Act 1865.
- 1925 c. 49. Officer of the Supreme Court within the meaning of sections 115 to 120 of the Supreme Court of Judicature (Consolidation) Act 1925.
- 1877 c. 57. Officer of or attached to the Supreme Court of Northern Ireland to whom section 76 of the Supreme Court of Judicature Act (Ireland) 1877 applies.
- Parliamentary Commissioner for Administration.
- 1964 c. 16. President, or member of a panel of chairmen, of industrial tribunals established under section 12 of the Industrial Training Act 1964.
- 1933 c. 41. Principal Clerk of Justiciary appointed under section 25 of the Administration of Justice (Scotland) Act 1933.
- 1927 c. 35. Procurator fiscal or procurator fiscal depute appointed under the Sheriff Courts and Legal Officers (Scotland) Act 1927.
- Public Works Loan Commissioner.
- Receiver for the Metropolitan Police District.
- 1959 c. 22. Registrar or Assistant Registrar appointed under section 18 or section 19 of the County Courts Act 1959.
- Registrar or Assistant Registrar of Friendly Societies.
- Registrar of the Privy Council.
- 1972 c. 70. Registration Officer appointed under Part III of the Local Government Act 1972.
- Sheriff clerk or sheriff clerk depute.
- Solicitor in Scotland to any department of Her Majesty's Government in the United Kingdom.
- Standing Counsel to any department of Her Majesty's Government in the United Kingdom.
- Substitution Officer of the Royal Air Force.
- 1920 c. 26. Technical Adviser to the Commissioners of Customs and Excise.
- Under-Sheriff appointed under section 1 of the Sheriffs (Ireland) Act 1920.

PART IV

OFFICES DISQUALIFYING FOR PARTICULAR CONSTITUENCIES

<i>Office</i>	<i>Constituency</i>
Her Majesty's Commissioner of Lieutenancy in the City of London.	The Cities of London and Westminster.
Her Majesty's Lieutenant for Greater London.	Any constituency comprising any part of Greater London.
Her Majesty's Lieutenant for a county in Great Britain.	Any constituency comprising the whole or part of the area for which he is appointed.
Governor of the Isle of Wight.	The Isle of Wight.
The High Sheriff of Greater London.	Any constituency comprising any part of Greater London.
High Sheriff of a county in England and Wales.	Any constituency comprising the whole or part of the area for which he is appointed.

SCHEDULE 2

Sections 2, 13.

MINISTERIAL OFFICES

Prime Minister and First Lord of the Treasury.

Lord President of the Council.

Lord Privy Seal.

Chancellor of the Duchy of Lancaster

Paymaster General.

Secretary of State.

Chancellor of the Exchequer.

Minister of Agriculture, Fisheries and Food.

President of the Board of Trade.

Minister of State.

Chief Secretary to the Treasury.

Minister in charge of a public department of Her Majesty's Government in the United Kingdom (if not within the other provisions of this Schedule).

Attorney General.

Lord Advocate.

Solicitor General.

Solicitor General for Scotland.

Parliamentary Secretary to the Treasury.

Financial Secretary to the Treasury.

Parliamentary Secretary in a Government department other than the Treasury, or not in a department.

Junior Lord of the Treasury.

Treasurer of Her Majesty's Household.

Comptroller of Her Majesty's Household.

Vice-Chamberlain of Her Majesty's Household.

Assistant Government Whip.

SCHEDULE 3

Section 10.

PROVISIONS SUBSTITUTED FOR PARTS II AND III OF SCHEDULE 1
IN RELATION TO NORTHERN IRELAND ASSEMBLY

"PART II

*COMMISSIONS, TRIBUNALS AND OTHER BODIES OF WHICH
ALL MEMBERS ARE DISQUALIFIED*

[Schedule 1
Part II]

The Advisory Board for the Research Councils.

The Agrément Board.

The Attendance Allowance Board for Northern Ireland.

The British Airways Board.

- SCH. 3
[Schedule 1
Part II]
- The British Railways Board.
The British Transport Docks Board.
The British Waterways Board.
The Central Council for Agricultural and Horticultural Co-operation.
The Civil Aviation Authority.
The Commission for Local Administration in England.
The Commission for Local Administration in Wales.
The Commonwealth Development Corporation.
The Council on Tribunals.
The Crown Agents for Oversea Governments and Administrations.
The Crown Estate Commissioners.
The Eggs Authority.
Enterprise Ulster.
The Fire Authority for Northern Ireland.
The Foreign Compensation Commission.
The Freight Integration Council.
The Herring Industry Board.
The Home-Grown Cereals Authority.
The Immigration Appeal Tribunal.
The Independent Broadcasting Authority.
The Industrial Arbitration Board.
An Industrial Court.
The Industrial Estates Corporations constituted in accordance with the Local Employment Act 1972.
The Industrial Injuries Advisory Council.
The Intervention Board for Agricultural Produce and every committee of the Board performing functions of the Board.
The Lands Tribunal.
The Lands Tribunal for Northern Ireland.
The Lands Tribunal for Scotland.
The Law Commission.
The Livestock Marketing Commission for Northern Ireland.
A Medical Appeal Tribunal constituted for the purposes of Part III of the Social Security (Northern Ireland) Act 1975 including any panel constituted for the purposes of any such Tribunal.
A Medical Board constituted for the purposes of Part III of the Social Security (Northern Ireland) Act 1975 including any panel constituted for the purposes of any such Board.
The Medicines Commission and any committee established under section 4 of the Medicines Act 1968.
The Mental Health Review Tribunal for Northern Ireland constituted under the Mental Health Act (Northern Ireland) 1961.
The Metrication Board.
- 1972 c. 5.
- 1968 c. 67.
- 1961 c. 15 (N.I.).

- The Ministry of Defence (Army Department) Teachers Selection Board. SCH. 3
- The Monopolies and Mergers Commission. [Schedule 1
Part II]
- A National Broadcasting Council.
- The National Coal Board.
- The National Film Finance Corporation.
- The National Freight Corporation.
- The National Insurance Advisory Committee.
- The National Research Development Corporation.
- A new town Commission established under the New Towns Act 1965 c. 13 (N.I.). (Northern Ireland) 1965.
- The Northern Ireland Agricultural Trust.
- The Northern Ireland Electricity Service.
- The Northern Ireland Finance Corporation.
- The Northern Ireland Housing Executive.
- The Occupational Pensions Board.
- A Panel of Chairmen of Re-instatement Committees constituted under section 41 of the National Service Act 1948. 1948 c. 64.
- The Panel of Official Arbitrators constituted for the purposes of the Acquisition of Land (Assessment of Compensation) Act 1919. 1919 c. 57.
- A Pensions Appeal Tribunal.
- The Performing Right Tribunal.
- The Planning Appeals Commission in Northern Ireland.
- The Police Authority for Northern Ireland.
- The Price Commission.
- The Race Relations Board and any conciliation committee constituted by the Board under section 14 of the Race Relations Act 1968. 1968 c. 71.
- The Reserve Pension Board.
- The Restrictive Practices Court.
- The Review Board for Government Contracts.
- A Rural Development Board in Northern Ireland.
- The Scottish Committee of the Council on Tribunals.
- The Scottish Land Court.
- The Scottish Law Commission.
- The Sugar Board.
- The Supplementary Benefits Commission.
- The Supplementary Benefits Commission for Northern Ireland.
- The Transport Tribunal.
- A tribunal established under section 13 of the Industrial Training Act (Northern Ireland) 1964, including any panel constituted for the purposes of any such tribunal. 1964 c. 18 (N.I.).

- SCH. 3
[Schedule 1
Part II]
1949 c. 54.
- The Tribunal established under Part II of the Wireless Telegraphy Act 1949.
The United Kingdom Atomic Energy Authority.
The University Grants Committee.
A Value Added Tax Tribunal.
The War Works Commission.
The Water Appeals Commission for Northern Ireland.
- 1970 c. 11.
- The White Fish Authority constituted in accordance with section 1 of the Sea Fish Industry Act 1970, and the committee constituted in accordance with section 2 of that Act.

PART III

OTHER DISQUALIFYING OFFICES

- [Schedule 1
Part III]
1971 c. 77.
- Adjudicator appointed for the purposes of the Immigration Act 1971.
Agent for Northern Ireland in Great Britain.
Ambassador representing Her Majesty's Government in the United Kingdom.
Arbitrator or other person appointed to hear a dispute under any of the following enactments—
- S.I. 1973/69
(N.I. 1).
1948 c. 28 (N.I.).
- The Drainage (Northern Ireland) Order 1973.
Section 18 of the Roads Act (Northern Ireland) 1948.
Auditor of the Civil List.
- 1949 c. 66.
- Boundary Commissioner or Assistant Boundary Commissioner appointed under Part I or Part II of Schedule 1 to the House of Commons (Redistribution of Seats) Act 1949.
Chairman of the Advisory Committee on Distinction Awards in Northern Ireland.
- 1966 c. 28
(N.I.).
- Chairman of an Appeal Tribunal constituted under Schedule 3 to the Supplementary Benefits &c. Act (Northern Ireland) 1966.
Chairman or Director General of the British Council.
Chairman of the Cinematograph Films Council.
Chairman of the Electricity Consumers' Council.
Chairman of the Fisheries Conservancy Board for Northern Ireland.
- S.I. 1972/1265
(N.I. 14).
- Chairman of a Health and Social Services Board established under Article 16 of the Health and Personal Social Services (Northern Ireland) Order 1972.
Chairman of the Local Government Staff Commission for Northern Ireland.
Chairman of the Northern Ireland Central Services Agency for the Health and Social Services.
Chairman of the Northern Ireland Council for Nurses and Midwives.
Chairman of the Northern Ireland Staffs Council for the Health and Social Services.

Chairman of the Northern Ireland Tourist Board.

SCH. 3
[Schedule 1
Part III]

Paid Chairman of an Industrial Training Board constituted under the Industrial Training Act (Northern Ireland) 1964 or of a committee appointed under that Act.

1964 c.18 (N.I.).

Chairman of a Local Tribunal constituted under section 97(2) of, and Schedule 10 to, the Social Security (Northern Ireland) Act 1975.

1975 c. 15.

Paid Chairman or other paid member of the Northern Ireland Training Executive.

Chairman or director of the Northern Ireland Transport Holding Company, or of any company which is a subsidiary of that Company.

Any Chairman of the Plant Varieties and Seeds Tribunal.

Chairman of the Staff Commission for Education and Library Boards in Northern Ireland.

Chief Electoral Officer or Deputy Electoral Officer for Northern Ireland.

Clerk of the Crown and Peace in Northern Ireland.

Clerk or Assistant Clerk of Petty Sessions in Northern Ireland.

Commissioner or Assistant Commissioner appointed under section 50(1) or (2) of, or Schedule 4 to, the Local Government Act 1972 c. 9 (N.I.). (Northern Ireland) 1972.

Commissioner of the City of London Police.

Commissioner or Assistant Commissioner of Police of the Metropolis.

Comptroller and Auditor General.

Comptroller and Auditor-General for Northern Ireland.

Coroner or deputy coroner appointed for any district in Northern Ireland.

Correspondent appointed by the Commissioners of Customs and Excise.

Crown Solicitor for Northern Ireland.

Director of the British Sugar Corporation Limited appointed by the Ministers as defined by section 17 of the Sugar Act 1956.

1956 c. 48.

Director of Cable and Wireless Limited.

Director appointed at a salary of the National Building Agency.

Director, or Deputy Director, of Public Prosecutions for Northern Ireland.

Director of S.B. (Realisations) Limited nominated or appointed by a Minister of the Crown or government department.

Director or receiver appointed by the Department or Ministry of Finance for Northern Ireland of any company.

- SCH. 3** Director or receiver of any company in receipt of financial assistance under the Industries Development Acts (Northern Ireland) 1966 and 1971 or the Shipbuilding Industry (Loans) Act (Northern Ireland) 1966, being a director or receiver nominated or appointed by a Head of a Department, Minister or department of the Government of Northern Ireland.
- [Schedule 1
Part III]**
- 1966 c. 30 (N.I.).
- 1962 c. 46. Director of the Holding Company referred to in the Transport Act 1962.
- Director General of Fair Trading.
- Election Commissioner.
- Examiner or member of a board of interviewers appointed by the Civil Service Commissioners.
- Examiner for entrance examination to, or member of a board of interviewers for entrance to, the civil service of Northern Ireland.
- Governor of the British Broadcasting Corporation.
- Governor, Deputy Governor or Director of the Bank of England.
- Governor, Lieutenant Governor and Secretary, or Captain of Invalids of Chelsea Hospital.
- 1953 c. 18 (N.I.). Governor, Medical Officer or other officer or member of the staff of a prison to which the Prison Act (Northern Ireland) 1953 applies.
- Health Service Commissioner for England.
- Health Service Commissioner for Scotland.
- Health Service Commissioner for Wales.
- High Commissioner representing Her Majesty's Government in the United Kingdom.
- 1963 c. 17 (N.I.). Independent person appointed under section 7(3) or section 8(4) of the Caravans Act (Northern Ireland) 1963.
- 1924 c. 21 (N.I.). Industrial Assurance Commissioner or Deputy Industrial Assurance Commissioner appointed under the Industrial Assurance Act (Northern Ireland) 1924.
- Judge Advocate of the Fleet.
- Judge Advocate General, Vice Judge Advocate General, Assistant Judge Advocate General or Deputy Judge Advocate.
- Local government officers, the following:—
- Clerk or deputy clerk of a district council in Northern Ireland ;
- County clerk or depute county clerk of a county in Scotland ;
- Clerk or depute clerk of a district council in Scotland ;
- Town clerk or depute town clerk of a burgh in Scotland.
- 1958 c. 47. Member of an Agricultural Marketing Board appointed by the Minister under Schedule 2 to the Agricultural Marketing Act 1958.
- 1933 c. 22 (N.I.). Member of an Agricultural Marketing Board appointed under section 2 of the Agricultural Marketing Act (Northern Ireland) 1933 or section 3 of the Agricultural Marketing Act (Northern Ireland) 1964.
- 1964 c. 13 (N.I.).
- 1948 c. 47. Member appointed by the Minister of Agriculture, Fisheries and Food of the Agricultural Wages Board for England and Wales or of an agricultural wages committee established under the Agricultural Wages Act 1948 or chairman of such a committee.

Member appointed by the Secretary of State of the Scottish Agricultural Wages Board.

SCH. 3
[Schedule 1
Part III]

Member appointed by the Head of the Department or Minister of Agriculture for Northern Ireland of the Agricultural Wages Board for Northern Ireland.

Member of a Wages Council or Central Co-ordinating Committee appointed under paragraph 1(a) of Schedule 2 to the Wages Councils Act 1959, Chairman of a Committee appointed under paragraph 1(1)(a) of Schedule 3 to that Act, or Member of a Commission of Inquiry appointed under paragraph 1(a) of Schedule 4 to that Act. 1959 c. 69.

Member of a Wages Council or Central Co-ordinating Committee appointed under paragraph 1(a) of Schedule 1 to the Wages Councils Act (Northern Ireland) 1945, or Member of a Commission of Inquiry appointed under paragraph 1(a) of Schedule 2 to that Act. 1945 c. 21 (N.I.).

Member of a panel of valuers appointed at an annual salary under section 4 of the Inland Revenue Regulation Act 1890. 1890 c. 21.

Northern Ireland Commissioner for Complaints.

Northern Ireland Parliamentary Commissioner for Administration.

Officer of the Board of Referees appointed for the purposes of section 26 of the Capital Allowances Act 1968. 1968 c. 3.

Officer or servant employed under the Commissioner of Police of the Metropolis or the Receiver for the Metropolitan Police District.

Officer or other member of the County Court Service within the meaning of the County Courts Act (Northern Ireland) 1959. 1959 c. 25 (N.I.).

Officer or servant of the Crown Estate Commissioners.

Officer of the Supreme Court within the meaning of sections 115 to 120 of the Supreme Court of Judicature (Consolidation) Act 1925. 1925 c. 49.

Officer of or attached to the Supreme Court of Northern Ireland to whom section 76 of the Supreme Court of Judicature Act (Ireland) 1877 applies. 1877 c. 57.

Parliamentary Commissioner for Administration.

Receiver for the Metropolitan Police District.

Registrar or Assistant Registrar appointed under section 18 or section 19 of the County Courts Act 1959. 1959 c. 22.

Registrar or Assistant Registrar of Friendly Societies.

Registrar of the Privy Council.

Standing Counsel to any department of Her Majesty's Government in the United Kingdom.

Substitution Officer of the Royal Air Force.

Technical Adviser to the Commissioners of Customs and Excise.

Under-sheriff appointed under section 1 of the Sheriffs (Ireland) Act 1920." 1920 c. 26.

SCHEDULE 4

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ARRANGEMENT OF SECTIONS

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